

TENTATIVE RULING

Case: **Cruz v. Philip**
Case No. CV2025-1574

Hearing Date: **August 13, 2026** **Department Fourteen** **9:00 a.m.**

On the Court's own motion, cross-defendant Darnelle Didget's demurrer to cross-complaint, cross defendant Mary Philip's demurrer to cross-complainant Darnelle Didget's first amended cross-complaint, and cross-defendant Mary Philip's motion to strike portions of cross-complainant Darnelle Didget's first amended cross-complaint are **CONTINUED** to **September 15, 2026**, at 9:00 a.m. in Department Fourteen.

TENTATIVE RULING

Case: **Genshlea v. FCA US LLC**
Case No. CV2025-1542

Hearing Date: **August 13, 2026** Department Fourteen **9:00 a.m.**

Motion to compel further responses to special interrogatories:

Plaintiff Joseph Genshlea's motion to compel further response to special interrogatories set one from defendant FCA US LLC is **GRANTED IN PART**. (Code Civ. Proc., § 2030.300.) As to its response to interrogatory no. 26, defendant has failed to justify its objections. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 541.) As to the other responses to interrogatories, the Court finds defendant's responses sufficient. (Code Civ. Proc., § 2030.230; *Liberty Mutual Ins. Co. v. Superior Court* (1992) 10 Cal.App.4th 1282, 1288; *Jensen v. BMW of N. Am., LLC* (S.D.Cal. 2019) 328 F.R.D. 557, 566.)

Therefore, defendant is **DIRECTED** to serve a further response to no. 26 by **September 3, 2026**.

Plaintiff's request for sanctions is **DENIED**. (Code Civ. Proc., § 2030.300, subd. (d).) As the Court is only ordering a further response to one interrogatory, it finds that defendant acted with substantial justification in opposing the motion. (*Ibid.*)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to compel further responses to request for production:

Plaintiff's motion to compel further responses to request for production set one from defendant FCA US LLC is **GRANTED IN PART**. (Code Civ. Proc., § 2031.310.) First, as to request for production no. 18, plaintiff has failed to show that it met and conferred with defendant as to this request before filing this motion. (Code Civ. Proc., §§ 2031.310, subd. (b)(2), 2016.040, subd. (a); Meagle decl., ¶¶ 5 & 7, Exhibits C & D; see also Graham decl., ¶¶ 5-6, Exhibits B & C.) Second, as to request for production no. 19, plaintiff articulated good cause justifying the discovery sought by the demand, and defendant has failed to justify its objections. (Code Civ. Proc., § 2031.310, subd. (b)(1); *Coy v. Superior Court* (1962) 58 Cal. 2d 210, 220-221.) Finally, as to the other responses to requests for production, plaintiff failed to show good cause justifying the discovery sought by the demand. (Code Civ. Proc., § 2031.310, subd. (b)(1); see *Liberty Mutual Ins. Co. v. Superior Court* (1992) 10 Cal.App.4th 1282, 1288; see also *Jensen v. BMW of N. Am., LLC* (S.D.Cal. 2019) 328 F.R.D. 557, 566.)

Therefore, defendant is **DIRECTED** to serve a further response and responsive documents to no. 19 by **September 3, 2026**.